

Tentative Rulings
May 4, 2026
Department 42

Tentative Rulings for Guardianship cases can be found in the link titled, “Department Guardianships - Tentative Rulings.”

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court’s website (www.shasta.courts.ca.gov) and are available by clicking on the “Tentative Rulings” link under the “Online Services” tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Per Local Rule 5.13, telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

11:00 a.m. – Case Management Conference

SIERRA PACIFIC WAGE AND HOUR CASES

Case Number: 5235

Tentative Ruling on Case Management Conference: This coordinated proceeding is on calendar for a Case Management Conference. The Court has reviewed the Case Management Conference Statements filed by Plaintiff John Smith, Plaintiff Quinton McDonald, and Defendant Sierra Pacific Industries.

STAY. The Remittitur in *McDonald* issued on April 13, 2026. On July 29, 2024 the Court executed the Order Regarding Joint Stipulation to Stay the Case Entirely and All Associated Discovery Deadlines Pending Appeal which ordered the *Smith* matter stayed until ten days after the Remittitur issues in *McDonald*. Both matters are no longer stayed.

MOTIONS. As the parties are aware, the Court is no longer in a Civil Law & Motion assignment and does not have a regular calendar for Law & Motion matters. Prior to filing motions in this matter, the parties are ordered to contact the Court’s judicial assistant who will provide a date for hearing. SPI filed a Motion for Reconsideration that is noticed for June 1, 2026. The Court is unavailable on June 1, 2026 and continues hearing on that motion to **Friday, June 5, 2026 at 8:30 a.m. in Department 42.** Pending in *McDonald* are SPI’s Motion for Extension of Time to Comply with Court Order Due to Impossibility that was filed on August 31, 2023 and SPI’s Motion for Protective Order Regarding Preservation and Production of Video Camera Footage that was filed on September 1, 2023. SPI only listed the Motion for a Protective Order in its Case Management Conference Statement and noted that the parties continue to meet and confer and that a hearing may not be necessary. If any party wishes to re-notice a motion that was pending when the stay went into effect, they are ordered to contact the Court’s Judicial Assistant to get a hearing date.

TRIAL DATES. The *McDonald* matter appears to be ready to be set for trial. The parties both agree that the five-year deadline is August 19, 2027. Plaintiff McDonald suggest a May 2027 trial date. SPI suggests a June or July 2027 trial date. The Court’s preference is to have the trial well in advance of the five-year deadline. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial as well as a time estimate. The parties are reminded that jury trials in Shasta County are conducted three days a week, Tuesday

through Thursday. The *Smith* matter is not ready to be set for trial. The parties are ordered to meet and confer regarding when a Motion for Class Certification may be filed.

MISCELLANEOUS. The Court notes that a Joint Stipulation to Amend the Court's Order Granting Plaintiffs' Motion for Clarification Re: Court's November 21, 2022 Order Granting Class Certification was filed in the *McDonald* matter during the stay and the Court deferred signing the Order. Only SPI addressed the Stipulation in their Case Management Conference Statement. The Court intends to clarify that both parties are still in agreement and will review the Stipulation and Proposed Order this week.

FURTHER CASE MANAGEMENT CONFERENCE DATE. The Court intends to set a further Case Management Conference and will discuss available dates with counsel.